

24LBCV02189 24LBCV02189

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C09%2F24%2F2026

Source SHA-256: 7dc79d9d25c811d2a409e16d686973c55defdfa10035fe0760960c14d795d1bb

Case Number: 24LBCV02189 Hearing Date: September 24, 2026 Dept: S27

1. Background

Facts

Plaintiff, Bertha C. De La Cruz filed

this action against Defendant, General Motors LLC for violation of Song-Beverly, breach of implied warranty, and fraud (fraudulent inducement and concealment).

2. Prior

Hearing on Motion to Compel Production of Purchase Contract

The Court heard Defendant's motion

to compel production of the purchase contract on 6/09/26. Prior to the hearing, the Court issued a detailed tentative ruling granting the unopposed motion to compel production of the purchase contract and imposing sanctions.

The Court's tentative ruling also included the following discussion re: a further deposition:

The Court notes that the notice of

motion and points and authorities indicates Defendant seeks an order compelling production of the purchase contract only.

Nothing in the notice of motion indicates Defendant seeks an order compelling a further deposition. The

notice of motion indicates Defendant was not able to examine Plaintiff on issues relating to the purchase contract, but does not indicate a further deposition is sought. Similarly, the

points and authorities, at page 3, lines 18-20, indicate Defendant seeks an order compelling production of the purchase contract and awarding monetary

sanctions, but there is no mention of a further deposition. See also page 6, lines 2-3, page 6, lines 19-20, page 7, lines 10-12, and the conclusion, page 7, lines 5-12, seeking only an order compelling production and imposing sanctions. Defense Counsel's declaration, however, at ¶12, seeks an order compelling Plaintiff to sit for a further deposition. The Court cannot grant relief that is not requested in the notice of motion or the points and authorities and is mentioned only in the supporting declaration.

To the extent a further deposition is necessary, the Court asks the parties to resolve the issues without further court intervention; the Court is not ordering the deposition at this time.

The parties appeared and argued, and the Court's final minute order is internally inconsistent. It continues to include the above language from the tentative ruling, but then, at the end of the minute order, it states, "Further deposition of Plaintiff is ordered to take place by June 18, 2026."

3. Motion

to Compel Compliance with 6/09/26 Order

On 7/02/26, Defendant filed a motion to compel compliance with the 6/09/26 order. Defendant alternatively seeks monetary, terminating, issue, and/or evidentiary sanctions. Defendant contends Plaintiff has neither produced the purchase contract nor sat for the continued session of her deposition.

Plaintiff, in opposition, contends she was never ordered to sit for a second session of her deposition, citing the portion of the tentative ruling quoted above that ultimately made its way into the final minute order after hearing.

She fails, however, to explain why she has not obeyed the order compelling her to produce the purchase contract. Indeed, her opposition is entirely silent in this regard.

Plaintiff filed her opposition papers timely, but Defendant did not file reply papers until four court days prior to the hearing, which is one day late per CCP §1005(b). The Court briefly reviewed the reply papers, but notes that they were not necessary to the ruling.

The Court wishes to hear from the parties at the hearing concerning why Plaintiff has not produced the purchase

contract and whether she plans to do so.

The Court clarifies that the portion of the 6/09/26 order declining to order a second session of deposition appears to have been included in the final order by mistake, and clarifies that Plaintiff must sit for a second session of her deposition. Counsel must meet and confer forthwith to schedule the second session of the deposition.

The Court will not impose sanctions of any kind based on the failure to appear for a second session of the deposition, as the prior minute order was internally inconsistent in this regard. The Court will determine, after hearing from the parties at the hearing, whether to impose sanctions for Plaintiff's failure to produce the purchase contract. The Court is inclined to impose monetary sanctions in this regard, but not to impose extremely harsh issue, evidentiary, and/or terminating sanctions so long as Plaintiff agrees to produce the contract forthwith.

If the parties submit on the tentative, Plaintiff will be ordered to produce the purchase contract within two days, work with Defense Counsel to schedule a second session of her deposition immediately (with the deposition to go forward within ten days), and monetary sanctions will be imposed in the amount of \$2100 against Plaintiff and her attorney of record, jointly and severally.

Defendant is ordered to give notice.